



SPONSOR: Rep. Yearick & Sen. Pettyjohn
Reps. Collins, D. Short, Michael Smith, Hilovsky

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 181

AN ACT TO AMEND TITLE 19 OF THE DELAWARE CODE RELATING TO FAMILY AND MEDICAL LEAVE
INSURANCE PROGRAM.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 3719, Title 19 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 3719. Penalties.

4 (a) Beginning January 1, 2029, an ~~An~~ employer who violates or fails to comply with any requirement of this
5 chapter, including failing to file reports as prescribed by the Department, failing to make contributions as required by this
6 chapter, and failing to properly handle and remit wage deductions from employees to the Department, is deemed in
7 violation of this chapter and is subject to a civil penalty of not less than \$1,000 nor more than \$5,000 for each violation.

8 (b) Beginning January 1, 2029, an ~~An~~ employer who discharges or in any manner discriminates against an
9 employee because that employee has made a complaint or has given information to the Department under this chapter, or
10 because the employee has caused to be instituted or is about to cause to be instituted any proceedings under this chapter, or
11 has testified or is about to testify in any proceedings is deemed in violation of this chapter and is subject to a civil penalty of
12 not less than \$1,000 nor more than \$5,000 for each violation.

13 (c) A civil penalty claim may be filed in any court of competent jurisdiction.

14 (d) Funds from any civil penalty under this chapter, including an overpayment penalty as authorized by § 3712 of
15 this title, must be deposited in the Fund.

SYNOPSIS

This bill changes the effective date of the penalty section of the Program to January 1, 2029.